ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	106th Commission Meeting
DATE:	30 November 2022
TIME:	10:00 AM
VENUE:	Hybrid (Virtual & Third Floor Meeting Room)

#	AGENDA & DISCUSSION	DECISIONS
1.	**Regular update on HR- HRS** *Given that the selection interview for the recruitment is being conducted from 28 November to 1 December 2022 for which most of the HRC members are engaged as panelists, the HRC for the week was not conducted. However, the HRO presented follow-up on the past decisions as follows:* ● *The two officials nominated for the Financial Investigation Specialist training at ICAC, Hong Kong will depart on 2 December 2022 and start the training from 05 December 2022.* ● *Additional directives on approving travel were shared by the Director of the Cabinet Secretariat to HROs of agencies during monthly webinar, whereby the travels are to be aligned with APA 2022-23. Therefore, a guideline has to be drafted for the approval of travel so that individual travel need not come to HRC for single approval.*	**While the Guidelines will be developed in compliance with the directives, it was noted that travels related to DARe and investigation need not come under it. This is mainly because, unlike other travels, case related travels have to be undertaken on ad-hoc basis to which the Commission during the 105th Commission meeting decided that as long as it is approved by the respective Commissioner In-Charges and Heads of Departments/Divisions, the travels shall be justified.** **Given that the mandatory training is usually conducted right after the appointment of the officials without hands-on experience in investigation, more often than not, the lectures and the contents are difficult to understand. To this, the IOs suggested to allow them to attend the mandatory training especially during the delivery of the investigation module as the practical experiences they have in dealing with the case will help them understand and grasp the content better and enhance their capacity. Towards this, directed HRC to discuss the possibility of including IOs who have already attended the last badge of the mandatory training to attend in the upcoming mandatory training especially during the delivery of the investigation module.**
2.	**Regular update on IVS- DoPS** *The Department presented the SOP on issuance of Integrity Assessment*	**The Commission gave specific comments on the SOP (attached as Annex I) and directed to share the revised SOP with ECB for their comments.**

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	Certificate (IAC) between the ACC and ECB (SOP attached as Annex I)	
3.	**Update on preparation for 19th IACD- ED, DoPE** *The Education Division presented the activities designed for the commemoration of 19th International Anti-Corruption Day (IACD), including the logo for the IACD, prizes for the winners of the quiz. update on the poster competition, stickers and tentative agenda. (Details attached as Annex II)* *Besides, the Division also presented the revised logo for the integrity proficiency badge and updated on the activities for the integrity education in scouting.*	**The specific comments and directions of the Commission vis-a-vis Division's proposals are as follow:** ● **IACD logo: Directed to take out 'Achieving' and instead keep it as 'BHUTAN Believe with integrity.** ● **Integrity tree: For those staff who already have their pledges can reflect on it, while the new staff can write their pledges anchored towards achieving Mission 114.** ● **Write to the Ministry of Finance (MoF) on the observation of the IACD stating that it is a modest celebration limited to the staff of the ACC with no substantial expenditure incurred. This is in compliance with the directives of the Cabinet Secretariat vide C-3/131/2022/437 dated November 9, 2022 directing agencies to write to the MoF for approving observation of International Days/Events.** ● **Directed to conduct a quiz instead of a lucky draw for the staff of the ACC.** ● **Directed to ensure gender balance in choosing characters for the stickers.** ● **Begin the programme by playing an excerpt pertinent to ACC from His Majesty's Address during the 114th National Day.** ● **Include Zhabten in the agenda.** **Regarding the logo for the integrity proficiency badge, the Commission directed to change the position of the 'Anti-Corruption Commission' and 'Bhutan Scouts Association' and inscribe the 'DAMTSI' word in Dzongkha.** **As for the activities for the integrity education in scouting, the Commission endorsed the proposed activities of the Division and further directed to include 'Collective Responsibility in Fighting Corruption' and 3Rs (Refrain from corruption, Report corruption, Resist Corruption) under the Duty to Tsa-Wa-Sum.**
4.	**Provide overall financial update- AFS, SS** *The AFS presented an update on the*	**Commission noted the updates and directed AFS to coordinate with the T/gang Regional Office on clearing any pending bills.**

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	follow up actions on previous meetings; issues and recommendation and financial progress as of 29 Nov 2022 (attached as Annex III).	**Directed Head of SS to study the usage of the two wheelers at Head Office and if not much use at Head Office, can be given to Regional Office.**
5.	**Present update on ICT (CCTV, UPS, power backup and networking)- ICTS** *The ICTS presented an update and sought direction of the Commission on following:* *i) Surveillance at the ACC* *Given the challenges of the current analogue surveillance cameras and the CMOS battery, ICTS suggested switching to IP cameras costing an estimated amount of Nu. 0.535mn and proposed the budget to be met from 014.01.0001.54.02 - Assessment and enhancement of overall security system and installations.* *ii) Network revamping* *In order to replace the old switches to new on the first and ground floor as well as to ensure the possibility of providing dedicated bandwidth to meeting halls, ICTS proposed a budget of Nu. 0.602mn to be met from 003.01.5167.54.02 - Investigation Services. The switches are necessary if the overall bandwidth of the ACC is to be increased from current 66mbps to 100mbps in future.* *iii) UPS - Power Backup* *The current power backup has a capacity of 10,000 watts and after connecting the biometric, it started producing a beeping sound, which indicates an alarm for low battery. Based on the assessment, out of 10,000 watts, 9,300 watts are being used and with only 700 watts to spare, there is an impending risk of power outage any time. Thus, based on the market survey, the ICTS recommended purchasing the NH Plus series which would cost an approximate amount of Nu. 2.000mn. The budget is to be explored from the savings of other activities or put under the budget proposal for next financial years.*	**The Commission appreciated the practical recommendation and approved the proposed recommendation.** **Towards this, given the frequent disturbance of the network, especially at the third floor where the switches are already replaced, the Commission directed ICTS to do some technical calculation like whether the 66 mbps is sufficient against the staff strength. If not, explore the possibility to increase the bandwidth as well as ensure that for a staff, only two devices are allowed for usage (one laptop and a phone) mainly to decongest the network. After all the assessments are done, the Commission will decide on the procurement of switches.** **Based on the recommendation of the ICTS and given the feature of the modulator to scale up to 80KVA, the Commission decided to explore the budget from the JSP Project fund savings.** **The Commission appreciated the initiative of the ICTS in exploring new alternatives and available technology and recommending practical solutions for mitigating relentless network issues. Nonetheless, reminded the ICTS to ensure that at the end of the day, the plans should make the work easier and ensure efficient service delivery. As for the three proposals, directed to submit a report as well.**

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6.	**Present the preliminary resolution on AR 2021-22 by NA & NC and way forward - PPD** *The 15th Annual Report of the ACC was deliberated on 22 November at the National Council and 28 November at the National Assembly. The AMO presented the preliminary resolutions and discussions held during the deliberation (Details attached as Annex IV)*	**Directed to wait for the formal resolutions to determine plan of actions.** **As for the analysis of the dada, from the next Annual Report, directed to see how differently can the data be interpreted for example the budget for year and the staff ratio against population can be used to determine the support of the Government.**
7.	Others: **i) Field Verification Report of DGM pertaining Case 22/2022** *On November 25, 2022 the Commissions received the field verification report from the DGM vide its letter No. No. X-1/DGM/2022/2013 on the quantification of minerals stacked at M/S T. Dema Stone Segregate Industries, Samtse. Based on the field verification report and the Joint Verification Note No. ACC/DoI/FOPL/Case-22/2022/2416 dated November 14, 2022, it was noted that the minerals stacked at M/S T. Dema Crushing unit belong to M/S Nob Minerals (one of the suspects in the particular case). Since there is no direct involvement of M/S T. Dema in the illegal extraction of minerals, the team recommended to allow M/S T. Dema to shift the minerals belonging to M/S Nob Minerals crushed at her crushing unit and resume her crushing plant. The cost for transporting of the minerals to be borne by M/S Nob Minerals as per the undertaking signed on November 14, 2022.*	**Decided to write back to the DGM in allowing M/S T. Dema to shift the minerals belonging to M/S Nob Minerals from her crushing unit and resume her plant. Directed the team to specify on the transportation charges to be in line with the undertaking and also to ensure that no minerals be deflected to evade legal consequences.**

Commissioner **Commissioner** **Chairperson**

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Presentation Outline



1. Follow up actions on previous meetings
2. **Issues and recommendations**
3. **Financial progress as of 29.11.2022**

Follow up actions on previous meetings

1. Supplementary budget for DoI- Nu. 6.000m (RGoB)

As per the recommendations of the 4th FC meeting and subsequent approval from the 101th Commission meeting, the supplementary budget request for Nu.6.000m was submitted to MoF vide letter no. ACC/SECT./Finance-05/2022-23/2248 dated 28th October 2022**.** However, with the challenges of resource constraint, only Nu. 2.348m has been approved my MoF. Accordingly, all staff have been notified to reduce travel wherever possible due to the resource constraint.

2. Fund balance in the endowment CD account- Nu. 5.100m

The 4th FC meeting after much deliberation decided to submit the issue to the Commission for further directives. The same was presented to the 101th Commission meeting held on 26th October 2022 and the Commission directed Secretariat Services to open a fixed deposit account. While exploring interest rates, the office was made to understand that the opening of a Fixed deposit account with any bank requires opening a current deposit account as a prerequisite. Hence, the 5th FC meeting held on 18th November 2022 recommended not to open the fixed deposit account since ACC does not have any approval for opening a CD account from MoF. Therefore, the meeting recommended to hold the endowment fund under the SWS saving account maintained with BoB with interest rate of 4.5 % per annum (Saving :Nu. 229,500 per annum, Fixed deposit: Nu. 331, 500; Difference: 102,000)

Follow up actions on previous meetings

- Savings after discontinuing tea for staff

	Before			After		
Item	**Qty**	**rate**	Total amount	**Qty**	**rate**	Total amount
Coffee	2nos	310	620	25nos	310	7750
Sugar	2 Bags	800	1,600	1cartoon	3111-	3,111
Green Tea	3nos	300	900	9pkts	300	2,700
Tea bag/leaves	20nos(250g)	130	2,600	17 pkts	210	3,570
Milk	3 Cartoon	820	2,460	3 Cartoons	820	2,460
Milk Powder	3 Cartoons	8000	24,000	0	0	0
			32,180			19,591
Approx. saving per month : 12,589						

Issues & recommendations

Issues	Recommendations
1. Limited current budget against increasing expenditure	➢ To rationalise travel and reduce travel wherever possible; ➢ To reduce any printing works;
2. Low Financial achievement Out of the approved capital budget of Nu. 42.374m, only Nu. 2.443m has been spent as of date.	➢ Secretariat Services with discuss the fund requirements with individual Departments and the findings will be presented in the pre mid-year budget review meeting for further prioritization.

Financial progress as of 29.11.2022

Thank You

Integrity Assessment Certificate (IAC)

1. Background

1.1 The Section 4.3.3.2 of the Rules on Elections Conduct in the Kingdom of Bhutan, 2022 provides that, "*Having such other qualifications as may be prescribed by the Commission in the Framework for Assessment for Candidates Participating in Elections.*"

1.2 In order to assure that the highest standards of capable and qualified citizens to the highest law-making body, the *Dhamngoi Zomdu* Team and Returning Officer (RO) shall ensure that aspiring candidates produce IAC from the ACC, during *Dhamngoi Zomdu* and filing of nominations.

2. Procedure for obtaining IAC from ACC

2.1 General procedure

2.1.1As per the existing practice of the ACC, the focal person designated by the Institutions and/or Agencies shall apply for integrity assessment required of an individual.

2.1.2 No individual candidates of the registered political parties shall directly to ACC for IAC.

2.2. For National Assembly Election

2.2.1The registered political parties shall apply directly to the ACC for obtaining IAC of their individual candidates. The Public Election Fund Division shall share the names of the political parties along with details of General Secretaries to the ACC for effective communication.

2.2.2Before applying for IAC, the registered political parties shall designate their General Secretary as the focal for initiating, on behalf of the party, the request for the IAC for their candidates.

2.3 National Council Election

2.3.1 Since the aspiring candidates for National Council (NC) do not hold any office, the Election Commission of Bhutan (ECB) shall facilitate their application for IAC. ECB shall follow the following process before formally submitting the list of candidates to ACC:

a. The Dzongkhag Electoral Officer shall compile the list of aspiring candidates in their respective Dzongkhags and submit it to the focal officer of the Department of Elections (DoE), ECB;

b. The focal officer of the DoE shall compile the list of aspiring candidates of all 20 Dzongkhags and submit to the Department of Professional Support (DoPS) of the ACC, at least two weeks prior to the date of issuance of Notification calling NC elections;

2.3.2 The ACC shall issue IAC on the dates communicated by ECB, in writing.

2.3.3 After receiving the IAC from ACC, the focal officer of the DoE shall submit the integrity assessment status report to the Commission for information, and then share the same to the concerned DzEO for onward dissemination to respective *Dhamngoi Zomdu* Teams and Ros.

2.3.4In the event, the aspiring candidates attend Dhamngoi Zomdu at the eleventh hour without IAC, the Dhamngoi Zomdu team leader shall immediately communicate to the concerned DzEO. The concerned DzEO shall, by quickest possible, communicate to the focal officer of the DoE. Accordingly, the focal officer of DoE, shall without any delay, further inform the focal officer of ACC for integrity assessment.

3. Procedure for the issuance of IAC by ACC

3.1 Once the General Secretaries are registered as focal with ACC, a user credential shall be assigned to them for accessing its Integrity Vetting System and to initiate IAC request, as may be required by the registered Political Party.

3.1.2 For National Council Election, a time-bound user credential shall be assigned to the designated focal officer of the DoE, ECB.

3.1.3 After receiving the request, ACC shall generate IAC of individual applicants using the information maintained in the Complaint and Investigation Management System (CIMS) and Asset Declaration System.

4. Use of IAC

4.1 The IAC is issued for election purpose and cannot be used for purposes other than the one explicitly specified in the IAC.

4.2 The Competent Authority shall ensure that the IAC and information therein, is used only for the intended purpose specified in their request and not misused for other purposes.

4.3 The IAC should be treated confidential and the Focal Person shall be held accountable for any misuse of information associated with IAC.

5. Type of IAC

5.1 For the election purpose only, ACC shall issue two types of IAC that indicate the existence of:

a) Report, and
b) Adverse Record

5.2. Report shall be read as, no adverse record against the candidate with ACC as of date other than the following which does not merit disqualification for election:

a) No record, or
b) There is complaint qualified for investigation/under investigation,
c) There is on-going trail for offense of misdemeanor and below, or
d) There is non-compliance record on Asset Declaration Rules including the verified disproportionate assets.

5.3 Adverse Record shall be read as, the applicant has been implicated in the case and;

a) Convicted for criminal offences and sentenced to imprisonment,
b) Is under trial for offences of felony and above,
c) Imposed or there is pending major administrative action (termination, dismissal or removal from service),

d) Imposed alternative sentences in lieu of imprisonment such as civil commitment and/or commutation of sentences civil sanctions in the forms of fine or penalty, or
e) There is pending confiscation, restitution or recovery.

6. Redressal

6.1 For any grievances associated with IAC, the ACC and ECB jointly shall put in place appropriate redressal systems.

Resolutions of the Parliament

22 November 2022: National Council (30th Session of the NC)

1. Abuse of Functions: Continue with advocacy and awareness programs.
2. Attrition and retention of staff: HR independence was proposed but wasn't adopted.
3. Security issues: Couldn't come up with specific measures.
4. Schools with and without integrity clubs: The GGC members will visit the field and conduct study the benefits of the integrity clubs in schools, after examining the effectiveness of the clubs, then they will decide the need for such initiatives.

Regarding 1 and 4, it was reverted back to the committee for internal discussion and to discuss if the sections require any recommendations for the final adoption.

28 November 2022: National Assembly (14th Sitting of the 8th Session, Third Parliament)

1. The Anti-Corruption Commission to strengthen awareness and advocacy programs to the Local Government leaders owing to the highest corruption especially abuse of functions in the Local Government.
2. Considering that the ACC had made various recommendations for agencies to implement, the ACC was recommended to submit a follow-up report to the Parliament on the actions taken by concerned Agencies and Ministries in the next reporting year.
3. Concerned agency should also submit a report to the Parliament on the implementation of the ACC's recommendation on surface collection and dredging of river bed materials in the next session.
4. ACC to continue conducting system assessments like Youth Integrity Assessment, and Social Accountability Assessment in the future.
5. ACC to coordinate with law enforcement agencies regarding their security concerns.
6. ECB in collaboration with ACC monitors and ensure corruption free elections both at the national and local government.

Observations

- The format of the ACC's annual report has been same (Complaints on Abuse of Functions, management of resources and LG has been the highest over years):What and how ACC is doing things differently.
- When providing recommendations, if the operational costs are huge and causes more harm to the Nation than benefits, then it is advisable for both the RAA and ACC to examine and study the groundwork comprehensively and provide recommendations that are conclusive, constructive and public interest in nature.

Way forward

- Emphasize on how ACC is taking more initiatives and what/howthings are done differently.
- Reporting on complaints is descriptive in nature: Connect them with the prevention and education initiatives and activities.
- Data must be further analyzed: why it is happening and what is needed to be done to address the issues.
- Going forward, PPD will have to facilitate and communicate with DoPS.
- TI-CPI- Report index wise (what we and other agencies can do to increase the weightage).
- What ACC has been doing, challenges and way forward from each department/division/service.
- Impact assessment on DoPE activities.